

Kamlesh Tiwari v. Executive Engineer Electricity

Allahabad High Court · Division Bench · 25 April 2023 · Writ - C No. 11525 of 2023 · **Writ disposed of on consent; late payment surcharge on the revised bill not to be charged under clause 6.5; petitioner to apply in the prescribed form for a new connection, deposit Rs. 60,000 within ten days and the balance of the electricity dues in two equal instalments, and thereafter pay current bills month to month; on default the licensee may recover the entire amount in accordance with law**

HEADNOTE

Late payment surcharge included in a revised electricity bill is not chargeable under clause 6.5 of the U.P. Electricity Supply Code, 2005. Kamlesh Tiwari challenged a bill-cum-demand dated 26 December 2022 after permanent disconnection of a 2 KW domestic connection. The licensee stated that the case was not one of theft, put the revised dues at Rs. 1,80,358 and the surcharge at Rs. 3,55,007, and admitted that a revised bill had been raised for the dues together with surcharge. Accepting the submission that surcharge is not admissible once the bill is revised, the Division Bench directed that late payment surcharge shall not be charged. On the consumer's undertaking to deposit the electricity dues, the writ was disposed of on consent: he is to apply in the prescribed form for a new connection, pay Rs. 60,000 within ten days and the balance in two equal instalments, and thereafter pay current bills month to month, failing which the licensee may recover the entire amount in accordance with law. The Court did not find that a clause 6.5 complaint had been made and upheld, and did not audit the revised principal.

FACTUAL SUMMARY

Kamlesh Tiwari petitioned the Allahabad High Court to quash a bill-cum-demand notice dated 26 December 2022 of the Executive Engineer, Electricity Urban Distribution Division, Purvanchal Vidyut Vitran Nigam Ltd., Karailabagh, Kareli, Allahabad. Domestic connection No. 6531595000, sanctioned load 2 KW, stood in the name of his mother, Smt. Rajkanya Devi. A defective meter was removed and replaced on 27 June 2018. He paid Rs. 1,20,000 towards dues on 15 March 2021, then stopped paying on the plea that bills were not being issued. Supply was permanently disconnected on 19 December 2022.

The Executive Engineer appeared with the record. The case was not one of theft. Revised dues were put at Rs. 1,80,358 and late payment surcharge at Rs. 3,55,007; the earlier figure had been over Rs. 8 lakhs. The petitioner offered to clear the electricity dues in three instalments and invoked clause 6.5 of the U.P. Electricity Supply Code, 2005 against surcharge on a revised bill. The licensee admitted that a revised bill had been raised for the dues together with late payment surcharge.

REUSABLE CONSTRUCTIONS

1. Late payment surcharge is not chargeable under clause 6.5 of the U.P. Electricity Supply Code, 2005 where the bill of outstanding electricity dues has been revised. ¶ 4-6
2. Where the licensee admits that a revised bill has been raised for outstanding dues together with late payment surcharge, the surcharge shall not be recovered and the consumer's liability is confined to the electricity dues. ¶ 5-6
3. On the consumer's undertaking to pay the revised electricity dues, the writ court may direct a fresh connection through a prescribed application and instalments of those dues, and direct that late payment surcharge on the revised bill shall not be charged, leaving the licensee to recover the whole in accordance with law if the consumer defaults. ¶ 6-7

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

late payment surcharge not chargeable on a revised bill

QUESTION

Where the licensee has raised a revised bill of outstanding electricity dues and included late payment surcharge, is that surcharge chargeable under clause 6.5 of the U.P. Electricity Supply Code, 2005?

HOLDING

No. The consumer submitted that under clause 6.5 surcharge is not admissible if the bill is revised, and offered to deposit the electricity dues in three instalments. The licensee admitted that a revised bill had been raised for the outstanding dues together with late payment surcharge, and stated that the case was not one of theft. The Court held that the late payment surcharge is not chargeable in view of clause 6.5 and shall not be charged. The writ was disposed of on consent: the consumer, who undertook to deposit the electricity dues, shall apply in the prescribed form for a new connection, deposit Rs. 60,000 within ten days towards part payment, pay the balance in two equal instalments, and thereafter pay current bills month to month. On default the licensee may recover the entire amount in accordance with law. ¶ 3-7

QUALIFIER

Consent disposal. The order does not record a clause 6.5 complaint, a finding that any complaint was correct, or payment by a revised due date. The revised principal of Rs. 1,80,358 was the licensee's figure, accepted by the undertaking, and was not independently assessed. The balance-instalment dates are printed as 10 July 2022 and 11 September 2022.

FLAG Unnumbered 25.04.2023 disposal. Paras are sequential blocks of that order only (1 challenge to the 26.12.2022 bill-cum-demand; 2 meter replacement on 27.06.2018, connection in the mother's name, deposit of Rs. 1,20,000 on 15.03.2021, non-issuance plea and permanent disconnection on 19.12.2022; 3 not theft, revised dues Rs. 1,80,358, surcharge Rs. 3,55,007, earlier demand over Rs. 8 lakhs; 4 clause 6.5 submission and three-instalment offer; 5 licensee's admission of a revised bill with surcharge; 6 surcharge not chargeable and shall not be charged; 7 consent directions). The source PDF also contains listing orders of 07.04.2023, 17.04.2023, 21.04.2023 (personal appearance of the Executive Engineer directed) and 24.04.2023. Clause 6.5 is cited without a sub-clause. The balance-instalment dates precede the order date of 25.04.2023; recorded as printed.

PRINCIPLE TAGS

lps-not-chargeable-on-revised-bill-clause-6.5 On the licensee's admission that a revised bill of outstanding dues had been raised together with late payment surcharge, and it not being a theft case, the Court held that surcharge is not chargeable under clause 6.5 of the U.P. Electricity Supply Code, 2005 and directed that it shall not be charged. The consumer's undertaking to pay the electricity dues was accepted and the writ was disposed of on that basis. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A CLAUSE 6.5 COMPLAINT HAD BEEN FILED AND FOUND CORRECT, AND WHETHER PAYMENT WAS MADE BY ANY REVISED DUE DATE

The direction that surcharge shall not be charged rests on the licensee's admission that a revised bill had been raised. The order does not examine those steps. ¶ 4-6

NOT DECIDED — QUANTUM AND COMPOSITION OF THE REVISED ELECTRICITY DUES OF RS. 1,80,358

Recorded as the licensee's computation. The petitioner undertook to deposit the electricity dues; the Court did not independently assess the figure or how the earlier demand of over Rs. 8 lakhs had been reduced. ¶ 3-7

NOT DECIDED — WHETHER ELECTRICITY BILLS WERE IN FACT NOT ISSUED AFTER THE DEPOSIT OF 15 MARCH 2021

Recorded as the petitioner's plea for having stopped payment. No finding was given, and the surcharge direction was rested on revision of the bill under clause 6.5. ¶ 2-6